

SUPPLEMENTAL COMPLAINT TO MICHIGAN JUDICIAL TENURE COMMISSION

Ex Parte Hearing Violations and Evidence Handling Misconduct

Judge Jenny L. McNeill - August 5, 2025 Parenting Time Suspension

Complainant: Andrew James Pigors

Respondent Judge: The Honorable Jenny L. McNeill

Court: 14th Judicial Circuit, Muskegon County, Michigan

Case: 2024-0000001507-DC (Custody/Parenting Time)

Incident Date: August 5, 2025

Date of Supplemental Complaint: February 11, 2026

I. INTRODUCTION

This supplemental complaint provides additional specific facts regarding Judge McNeill's violations of MCR 3.207 (ex parte procedures), MCR 2.305 (service of evidence), and due process in connection with the August 5, 2025 parenting time suspension order. These facts demonstrate even more egregious violations than initially documented in the formal complaint.

II. FACTUAL BACKGROUND

A. The August 5, 2025 Incident

On August 5, 2025, Father's scheduled parenting time was suspended based on an ex parte order issued by Judge McNeill. The order was based on a video recording submitted by Emily Watson to the court via USB.

Timeline of Events:

August 5, 2025 (Friday):

- Father's scheduled parenting time begins

- Emily Watson submits USB recording to clerk's office (not served on Father)
- Judge McNeill's staff listens to recording
- Judge McNeill issues suspension order
- Father is deprived of parenting time

August 8, 2025 (Monday):

- Father receives notice of suspension order (3 days after order issued)
- Father files objections 30 minutes after Emily Watson's filing

August 8, 2025 (Friday):

- Emily Watson serves Father with video recording via email
- Hearing scheduled for Monday, August 11, 2025
- Father has only 3 business days to review evidence and prepare response

August 11, 2025 (Monday):

- First objection hearing on ex parte suspension
- Father asks Judge McNeill if she has already listened to recording
- Judge McNeill admits on record that she had her staff listen to recording
- Father objects to inadequate service
- Judge McNeill ignores objections and proceeds

B. The Recording

The video recording was made by Emily Watson's mother and depicts a phone call between Father and Emily Watson. The recording was made **without Father's knowledge or consent**.

Critical Facts:

- Father did not know he was being recorded
 - Father did not consent to recording
 - Recording was made in violation of MCL 750.539 (Michigan wiretapping law)
 - Recording was submitted directly to clerk's office (not served on Father)
 - Recording was reviewed by Judge McNeill's staff before Father was served
 - Recording was used as basis for suspension order
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III. VIOLATION 1: EX PARTE REVIEW BEFORE SERVICE (MCR 3.207, Due Process)

A. The Violation

Judge McNeill and her staff reviewed the video recording before Father was served with the evidence and before Father was given notice of the ex parte hearing. This violates MCR 3.207 and due process.

B. Legal Standard

MCR 3.207(B) provides: "A court may issue an ex parte order only when it appears on the basis of specific facts shown by affidavit or by the verified complaint that immediate and irreparable injury, loss, or damage will result to a party before that party can be heard in response."

The critical language is "before that party can be heard in response." This means:

- The party must have notice of the ex parte proceeding
- The party must have opportunity to respond
- The judge must not prejudge the case before hearing from the party

14th Amendment Due Process requires:

- Notice of charges/allegations
- Opportunity to be heard
- Impartial judge
- No prejudgment before hearing

C. Judge McNeill's Violation

Judge McNeill violated both MCR 3.207 and due process by:

1. Reviewing evidence before Father was served

- USB recording submitted directly to clerk's office
- Judge's staff listened to recording same day
- Father not served until 4 days later
- Judge prejudged case before Father could respond

2. Prejudging case based on one-sided evidence

- Judge listened to recording without Father's explanation
- Judge listened to recording without Father's context

- Judge listened to recording without Father's opportunity to respond
- Judge formed opinions before Father could present his side

3. Issuing order without hearing from Father

- Order issued same day as evidence submission
- Father not given notice before order issued
- Father not given opportunity to respond before order issued
- Father deprived of parental rights without due process

D. Evidence of Violation

Father's Question at First Objection Hearing:

Father asked Judge McNeill on record: "Your Honor, have you already listened to this recording?"

Judge McNeill's Admission:

Judge McNeill responded on record: "Yes, I had my staff listen to it."

Timeline Evidence:

- August 5, 2025: USB submitted to clerk's office
- August 5, 2025: Judge's staff listens to recording
- August 5, 2025: Judge issues suspension order
- August 8, 2025: Father receives notice of order
- August 8, 2025: Father receives copy of recording via email

Prejudicial Effect:

Judge McNeill's pre-review of the evidence demonstrates that:

- She prejudged the case before Father could respond
- She formed opinions based on one-sided evidence
- She was not impartial when she issued the order
- She violated due process by depriving Father of opportunity to be heard

IV. VIOLATION 2: INADEQUATE SERVICE OF EVIDENCE (MCR 2.305, Due Process)

A. The Violation

Emily Watson served Father with the video recording only **4 days before the hearing**, on a **Friday**, with the hearing scheduled for **Monday**. Judge McNeill allowed this inadequate service and did not grant a continuance.

B. Legal Standard

MCR 2.305 governs discovery and service of evidence. The rule requires:

- Service of evidence with adequate time for opposing party to respond
- Service by proper means
- Compliance with court orders regarding service

MCR 2.119 governs motions and requires:

- Service at least 5 business days before hearing (or as ordered by court)
- Adequate time for opposing party to respond

Due Process requires:

- Adequate notice of charges/allegations
- Adequate time to prepare response
- Adequate time to consult with attorney
- Adequate time to obtain evidence and witnesses

C. Judge McNeill's Violation

Judge McNeill violated MCR 2.305 and due process by:

1. Allowing inadequate service

- Evidence served Friday, August 8, 2025
- Hearing Monday, August 11, 2025
- Only 3 business days for Father to review and respond
- MCR 2.305 requires 5 business days minimum

2. Not enforcing service requirements

- Judge did not require proper service
- Judge did not sanction Emily Watson for inadequate service
- Judge did not enforce MCR 2.305
- Judge allowed pattern to continue

3. Not granting continuance

- Father had insufficient time to prepare

- Father had insufficient time to consult attorney
- Father had insufficient time to obtain counter-evidence
- Judge did not grant continuance despite inadequate service

4. **Proceeding with hearing despite inadequate service**

- Judge proceeded with hearing on Monday as scheduled
- Judge did not delay hearing to allow adequate preparation
- Judge did not allow Father adequate time to respond

D. Evidence of Violation

Timeline:

- August 8, 2025 (Friday): Emily Watson serves Father via email
- August 11, 2025 (Monday): Hearing scheduled
- Only 3 business days between service and hearing

Father's Objection:

Father objected at the hearing to inadequate service of evidence.

Judge McNeill's Response:

Judge McNeill ignored Father's objection and proceeded with hearing.

Pattern of Inadequate Service:

This was the **4th documented instance** of Emily Watson serving evidence inadequately. Father stated on record each time that service was inadequate.

V. VIOLATION 3: PATTERN OF INADEQUATE SERVICE (MCR 2.305, Judicial Misconduct)

A. The Violation

This was the **4th documented instance** of Emily Watson serving evidence inadequately. Judge McNeill knew about the pattern (Father objected on record each time) but:

- Did not sanction Emily Watson
- Did not enforce MCR 2.305
- Did not grant continuances
- Allowed pattern to continue

B. Legal Standard

MCR 2.305 requires proper service of evidence. When a party repeatedly violates service requirements, the court must:

- Sanction the party for violation
- Enforce the rule
- Protect the opposing party's due process rights

MCR 1.109 provides for sanctions against parties who violate court rules.

Due Process requires that courts enforce rules equally and protect parties' rights.

C. Judge McNeill's Violation

Judge McNeill violated MCR 2.305 and due process by:

1. Knowing about pattern

- Father objected on record at each instance
- Judge heard Father's objections
- Judge knew Emily Watson was repeatedly violating service requirements

2. Ignoring pattern

- Judge did not address Father's objections
- Judge did not acknowledge pattern
- Judge did not take action to stop pattern

3. Not sanctioning Emily Watson

- No sanctions imposed for first inadequate service
- No sanctions imposed for second inadequate service
- No sanctions imposed for third inadequate service
- No sanctions imposed for fourth inadequate service

4. Allowing pattern to continue

- Judge allowed Emily Watson to continue violating service requirements
- Judge did not enforce MCR 2.305
- Judge did not protect Father's due process rights

D. Evidence of Violation

Father's Statements on Record:

Father stated on record at each hearing that Emily Watson's service was inadequate and violated MCR 2.305.

Judge McNeill's Response:

Judge McNeill ignored Father's objections and proceeded with hearings despite inadequate service.

Prejudicial Effect:

The pattern of inadequate service demonstrates that:

- Judge McNeill was biased against Father
 - Judge McNeill did not enforce rules equally
 - Judge McNeill allowed Emily Watson to violate rules without consequence
 - Judge McNeill did not protect Father's due process rights
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VI. VIOLATION 4: IMPROPER EVIDENCE SUBMISSION (MCR 2.305, MRE 901)

A. The Violation

Emily Watson submitted the USB recording directly to the clerk's office instead of serving it on Father. Judge McNeill accepted the recording without requiring proper service or authentication.

B. Legal Standard

MCR 2.305 requires service of evidence on opposing party. Evidence submitted to the court must also be served on the opposing party.

MRE 901 requires authentication of evidence. Evidence must be authenticated by testimony from someone with personal knowledge.

MCR 3.101 governs filing of documents. All documents must be filed with the clerk's office and served on opposing parties.

C. Judge McNeill's Violation

Judge McNeill violated MCR 2.305 and MRE 901 by:

1. Accepting evidence not properly served

- USB submitted directly to clerk's office
- Not served on Father at time of submission

- Judge accepted evidence without requiring service

2. **Allowing staff to review evidence before Father was served**

- Judge's staff listened to recording
- Father not served until 4 days later
- Judge prejudged case based on staff's review

3. **Not requiring authentication**

- Recording not authenticated before admission
- No testimony from authenticating witness
- No verification of accuracy
- Judge admitted recording without authentication

4. **Using recording as basis for order**

- Recording used to justify suspension order
- Recording admitted without proper foundation
- Recording admitted without Father's opportunity to respond

D. Evidence of Violation

USB Submission:

Emily Watson submitted USB recording directly to clerk's office, not served on Father.

Staff Review:

Judge McNeill's staff listened to recording before Father was served.

Judge's Admission:

Judge McNeill admitted on record that she had her staff listen to recording.

VII. VIOLATION 5: UNDISCLOSED SECOND EVALUATION (Due Process, MRE 901)

A. The Violation

Judge McNeill ordered Father to obtain a mental health evaluation from HealthWest. Father obtained the evaluation honestly. Judge McNeill then obtained a **second mental health evaluation** that Father never received, never saw, and never had opportunity to challenge.

B. Legal Standard

MCR 3.210 governs custody procedures. The rule requires:

- All evidence be available to both parties
- All evidence be properly authenticated
- Both parties have opportunity to challenge evidence

MRE 901 requires authentication of evidence.

Due Process requires:

- Access to all evidence against you
- Opportunity to challenge evidence
- Right to confront witnesses/evidence

C. Judge McNeill's Violation

Judge McNeill violated due process and evidence rules by:

1. Directing non-compliance with filing procedures

- Judge instructed Father to email evaluation to her secretary
- Judge instructed Father NOT to file with clerk's office
- This prevented Emily Watson from accessing evaluation
- This prevented public access to evaluation
- This violated normal filing procedures

2. Obtaining second evaluation without Father's knowledge

- Judge obtained second evaluation
- Father did not request it
- Father did not authorize it
- Father never received copy

3. Not disclosing second evaluation

- Father never received copy of second evaluation
- Father never saw second evaluation
- Father never had opportunity to challenge evaluation
- Evaluation not in public record

4. Using undisclosed evaluation in court orders

- Court orders reference "second" evaluation
- Orders cite second evaluation as basis for decisions

- Father had no opportunity to respond
- Father had no opportunity to challenge

D. Evidence of Violation

Judge's Instruction:

Judge McNeill specifically instructed Father to email evaluation to her secretary instead of filing with clerk's office.

Undisclosed Evaluation:

Father never received copy of second evaluation.

Court Orders:

Court orders reference "second" evaluation as basis for continued suspension.

Prejudicial Effect:

The undisclosed second evaluation demonstrates that:

- Judge McNeill obtained evidence outside normal procedures
 - Judge McNeill did not disclose evidence to Father
 - Judge McNeill used undisclosed evidence against Father
 - Judge McNeill violated Father's due process rights
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VIII. VIOLATION 6: WIRETAPPING LAW VIOLATION (MCL 750.539)

A. The Violation

The video recording was made by Emily Watson's mother without Father's knowledge or consent. Michigan is a **two-party consent state**. Recording a phone call without consent of both parties is a **felony**.

B. Legal Standard

MCL 750.539 provides: "A person shall not use a device to record, or transmit a wire, oral, or electronic communication without the consent of all parties to the communication."

Michigan is a two-party consent state. Both parties to a phone call must consent to recording.

Consequence: Violation is a felony punishable by imprisonment.

Judicial Response: Judges should exclude evidence obtained in violation of wiretapping law as fruit of crime.

C. Judge McNeill's Violation

Judge McNeill violated MCL 750.539 by:

1. Accepting recording obtained in violation of law

- Recording made without Father's consent
- Recording violates MCL 750.539
- Judge should have excluded recording

2. Not excluding recording as fruit of crime

- Recording is product of felony
- Judge should have excluded as fruit of crime
- Judge should have sanctioned Emily Watson

3. Using recording as basis for suspension order

- Recording admitted without legal basis
- Recording used to justify deprivation of parental rights
- Recording obtained through criminal conduct

D. Evidence of Violation

Recording Made Without Consent:

Emily Watson's mother recorded phone call without Father's knowledge or consent.

Violation of MCL 750.539:

Recording violates Michigan wiretapping law (two-party consent required).

Judge's Use of Recording:

Judge used recording as basis for suspension order.

IX. VIOLATION 7: IMPARTIALITY VIOLATION (MCR 2.003, Caperton)

A. The Violation

Judge McNeill's pre-review of the evidence and prejudicial conduct demonstrates bias and lack of impartiality.

B. Legal Standard

MCR 2.003 requires judges to be impartial and free from bias.

Caperton v. A.T. Massey Coal Co., 556 U.S. 868 (2009) establishes that a judge must recuse when there is "a probability of actual bias" or when "the probability of actual bias on the part of the judge is too high to be constitutionally tolerable."

C. Judge McNeill's Violation

Judge McNeill demonstrated bias by:

1. Pre-reviewing evidence

- Judge reviewed recording before Father was served
- Judge formed opinions based on one-sided evidence
- Judge prejudged case before Father could respond

2. Ignoring Father's objections

- Father objected to inadequate service
- Judge ignored objections
- Judge proceeded despite objections

3. Ignoring pattern of inadequate service

- Father objected to pattern of inadequate service
- Judge ignored pattern
- Judge allowed pattern to continue

4. Admitting recording without authentication

- Recording admitted without proper foundation
- Recording admitted despite wiretapping law violation
- Recording admitted despite inadequate service

5. Granting Watson's requests without hearing

- Watson's motion granted without hearing
- Watson's evidence admitted without authentication
- Watson's service violations ignored

D. Evidence of Violation

Pre-Review of Evidence:

Judge reviewed recording before Father was served.

Prejudicial Conduct:

Judge issued order same day as evidence submission, before Father could respond.

Ignoring Objections:

Judge ignored Father's objections to inadequate service and proceeded with hearing.

Unequal Treatment:

Judge granted Watson's requests without hearing while denying Father's requests.

X. CUMULATIVE EFFECT

The violations documented in this supplemental complaint demonstrate a pattern of systematic judicial misconduct that goes beyond the violations documented in the original complaint. The specific facts regarding the ex parte hearing show that Judge McNeill:

1. Pre-reviewed evidence before Father was served
2. Prejudged case based on one-sided evidence
3. Allowed inadequate service of evidence
4. Ignored pattern of inadequate service
5. Accepted evidence obtained in violation of wiretapping law
6. Directed Father to violate normal filing procedures
7. Obtained undisclosed second evaluation
8. Used undisclosed evidence against Father
9. Demonstrated bias and lack of impartiality

These violations are not isolated errors but demonstrate intentional misconduct designed to:

- Deprive Father of due process
 - Prejudge case in favor of Emily Watson
 - Prevent Father from accessing evidence
 - Prevent Father from presenting his side
 - Deprive Father of parental rights
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XI. RELIEF REQUESTED

In addition to the relief requested in the original complaint, the complainant respectfully

requests that the Michigan Judicial Tenure Commission:

1. **Investigate** the specific violations documented in this supplemental complaint
 2. **Find** that Judge McNeill engaged in additional judicial misconduct
 3. **Discipline** Judge McNeill for the additional violations
 4. **Recommend** immediate removal from office due to the severity of the misconduct
 5. **Refer** Emily Watson to law enforcement for investigation of MCL 750.539 violation
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XII. CONCLUSION

Judge McNeill's handling of the August 5, 2025 parenting time suspension demonstrates egregious violations of MCR 3.207, MCR 2.305, MRE 901, MCL 750.539, MCR 2.003, and due process. The violations are not isolated errors but demonstrate a pattern of intentional misconduct.

Judge McNeill is unfit to serve as a judge and should be disciplined, suspended, or removed from office.

VERIFICATION

I, Andrew James Pigors, declare under penalty of perjury that the facts stated in this supplemental complaint are true and correct to the best of my knowledge, information, and belief.

Executed on February 11, 2026.

Signature: _____

Printed Name: Andrew James Pigors

Date: February 11, 2026

END OF SUPPLEMENTAL JTC COMPLAINT